

Website Terms & Conditions

Last updated: July 2026

These Website Terms & Conditions govern your use of www.thesmartcatalogue.com (the “Website”).

The Website is operated by Club Madeira Ltd trading as The Smart Catalogue (“we”, “us” or “our”).

By using this Website, you agree to these Terms & Conditions. If you do not agree with these terms, you should not use the Website.

1. About The Smart Catalogue

The Smart Catalogue is a product and trading name operated by Club Madeira Ltd.

The Smart Catalogue provides technology that enables participating organisations, communities and website owners to display product catalogues containing products from participating merchants and retailers.

Participating organisations can manage the categories and types of products displayed through their Smart Catalogue and may receive a share of commission generated from qualifying purchases.

2. Website Information

The content of this Website is provided for general information about The Smart Catalogue and our services.

We aim to keep information accurate and up to date but do not guarantee that all information will always be complete, accurate or current.

We may update, change, suspend or remove Website content without notice.

3. The Smart Catalogue Service

The availability and operation of The Smart Catalogue may depend on third-party services, technology providers, merchants, retailers, affiliate networks and internet services.

We do not guarantee that the Website or The Smart Catalogue services will always be available, uninterrupted or free from errors.

We may update, modify, suspend or discontinue features where reasonably necessary for technical, security, legal, operational or commercial reasons.

4. Products Displayed Through The Smart Catalogue

Products displayed through The Smart Catalogue are provided by participating merchants and retailers.

Club Madeira Ltd and The Smart Catalogue do not manufacture, stock, supply or sell the products displayed.

Product information, prices, availability, delivery arrangements, warranties, returns policies and other terms relating to purchases are determined by the relevant merchant.

Product information may change without notice.

While we take reasonable steps to provide accurate product information, we cannot guarantee that all information supplied by merchants or third-party providers will always be complete, accurate or current.

5. Purchases From Merchants

When you select a product through The Smart Catalogue, you may be redirected to the website of the relevant merchant or retailer.

Any purchase you make is a transaction directly between you and that merchant.

The merchant is responsible for:

- Processing payments
- Collecting payment, billing and delivery information
- Order fulfilment and delivery
- Product quality and suitability
- Product warranties
- Customer service
- Cancellations
- Returns and refunds
- Compliance with consumer protection laws relating to the sale

Club Madeira Ltd and The Smart Catalogue do not receive or store customers' payment card details, payment information, billing addresses or delivery addresses relating to purchases completed with merchants.

Any questions, complaints or disputes concerning a purchase should be directed to the relevant merchant.

6. Affiliate Links and Commission

Products displayed through The Smart Catalogue may contain affiliate links.

When a visitor follows an affiliate link and completes a qualifying purchase, Club Madeira Ltd may receive commission from the relevant merchant, retailer or affiliate network.

Commission may be shared between Club Madeira Ltd, commercial partners and the participating community or organisation through whose Smart Catalogue the purchase originated.

Affiliate tracking technologies are used to identify referrals, attribute qualifying purchases, calculate commission and distribute commission correctly.

For more information, please read our [Affiliate Disclosure](#) and [Cookie Policy](#).

7. Participating Organisations and Communities

Organisations and communities participating in The Smart Catalogue can manage the categories, interests and types of products they wish to display.

The Smart Catalogue technology may automatically select, organise and update products according to these settings and instructions.

Club Madeira Ltd does not guarantee that any particular product, merchant or category will always be available.

The range of products and merchants available may change from time to time.

8. Accounts and Security

Certain services may require you to create an account.

You are responsible for:

- Providing accurate information
- Keeping your login details and password secure
- Preventing unauthorised access to your account
- Informing us promptly if you believe your account has been compromised

You must not allow another person to use your account without appropriate authorisation.

We may suspend or restrict accounts where we reasonably believe there has been misuse, unauthorised access, fraud, security concerns or a breach of applicable terms.

9. Acceptable Use

You must not use the Website or The Smart Catalogue services:

- For unlawful or fraudulent purposes
- To interfere with the operation or security of our systems
- To attempt to gain unauthorised access to accounts, systems or data
- To introduce viruses, malicious software or harmful technology
- To copy, scrape, extract or commercially exploit Website or platform content without permission
- To misuse artificial intelligence features or submit unlawful, harmful or abusive instructions
- To infringe intellectual property rights or other legal rights
- In any way that could damage the reputation, operation or security of Club Madeira Ltd, The Smart Catalogue, participating organisations or merchants

10. Intellectual Property

Unless otherwise stated, the Website, The Smart Catalogue platform, software, branding, designs, text, graphics and other original content are owned by or licensed to Club Madeira Ltd.

You may view and use the Website for lawful personal or business purposes connected with evaluating or using The Smart Catalogue.

You must not reproduce, distribute, modify, commercially exploit or create derivative works from our intellectual property without prior written permission.

Merchant names, trademarks, product images and product information remain the property of their respective owners or licensors.

11. Third-Party Websites

The Website and The Smart Catalogue contain links to third-party websites.

We are not responsible for the availability, security, content, products, services, privacy practices or terms of third-party websites.

Following a third-party link is at your own discretion and subject to the terms and policies of that website.

12. Liability

Nothing in these Terms excludes or limits liability where it would be unlawful to do so, including liability for death or personal injury caused by negligence, fraud or fraudulent misrepresentation.

To the extent permitted by law, Club Madeira Ltd is not responsible for losses arising from:

- Purchases made from third-party merchants
- Products or services supplied by merchants
- Product availability, pricing or information provided by merchants
- Delivery delays, cancellations, returns or refunds
- Acts or omissions of third-party service providers, merchants or affiliate networks
- Temporary interruptions to the Website or The Smart Catalogue services
- Loss of commission resulting from tracking failures, merchant decisions, returned purchases, cancelled transactions or circumstances outside our reasonable control

If you use the Website or services for business purposes, we will not be liable for indirect or consequential losses, loss of profits, loss of business, loss of opportunity, loss of goodwill or loss of anticipated savings, except where liability cannot legally be excluded.

13. Privacy and Cookies

We process personal information in accordance with our Privacy Policy.

Our use of cookies and similar technologies is explained in our Cookie Policy.

14. Changes to These Terms

We may update these Website Terms & Conditions from time to time to reflect changes to our services, technology, business practices or legal obligations.

The latest version will be published on this Website and the “Last updated” date will be amended accordingly.

15. Governing Law and Jurisdiction

These Terms & Conditions are governed by the laws of England and Wales.

The courts of England and Wales will have jurisdiction over disputes arising from or relating to the use of this Website, subject to any mandatory rights available to consumers under applicable law.

16. Contact Us

If you have questions about these Terms & Conditions, please contact:

Club Madeira Ltd trading as The Smart Catalogue

Email: support@clubmadeira.uk

Website: www.thesmartcatalogue.com